

ABC SARL - Employee Leave Policy

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Effective Date: January 1, 2025

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1. Purpose and Scope

This Leave Policy establishes the guidelines and procedures for all types of employee leaves at ABC SARL. This policy applies to all permanent employees, temporary staff, and contractors as specified in their employment agreements.

2. Annual Leave (Paid Time Off)

2.1 Entitlement

- **0-2 years of service:** 20 working days per year
- **3-5 years of service:** 22 working days per year
- **6-10 years of service:** 25 working days per year
- **10+ years of service:** 28 working days per year

2.2 Accrual and Usage

- Annual leave accrues monthly at a rate of 1/12th of the annual entitlement
- Employees may use accrued leave after completing three months of employment
- A maximum of 5 days of unused leave may be carried forward to the next year
- Leave requests must be submitted at least 10 working days in advance for absences exceeding 3 days
- Managers must respond to leave requests within 3 working days

2.3 Approval Process

- Leave requests are submitted through the company's HR management system
- Approval is at the discretion of the direct supervisor and department head
- During peak business periods, leave may be restricted to ensure operational continuity
- At least 60% of team members must be present at any given time

3. Sick Leave

3.1 Entitlement

- Employees are entitled to 15 days of paid sick leave per calendar year
- Sick leave does not carry over to the following year
- Medical certificate required for absences exceeding 2 consecutive days

3.2 Notification Requirements

- Employees must notify their supervisor before 9:00 AM on the first day of absence
- For extended illness, employees must provide weekly updates to HR
- Medical certificates must be submitted within 48 hours of return to work

3.3 Extended Medical Leave

- For serious illness or injury exceeding 15 days, employees may apply for extended medical leave
- Extended medical leave is unpaid after exhaustion of sick leave entitlement
- Company may request independent medical evaluation for leaves exceeding 30 days

4. Maternity and Paternity Leave

4.1 Maternity Leave

- Female employees are entitled to 14 weeks of paid maternity leave
- Leave may commence up to 4 weeks before the expected delivery date
- Employees must provide medical certificate confirming pregnancy and expected delivery date at least 8 weeks before intended leave date
- Upon return, flexible working arrangements may be requested for up to 6 months

4.2 Paternity Leave

- Male employees are entitled to 10 working days of paid paternity leave
- Leave must be taken within 4 weeks of the child's birth
- Birth certificate or hospital documentation required

4.3 Adoption Leave

- Employees adopting a child under 12 years old are entitled to 8 weeks of paid leave

- Legal adoption documentation must be provided

5. Compassionate Leave

5.1 Bereavement Leave

- **Immediate family (spouse, parent, child, sibling):** 5 working days paid leave
- **Extended family (grandparent, in-laws, aunt, uncle):** 3 working days paid leave
- Additional unpaid leave may be granted at management's discretion
- Death certificate or funeral documentation may be required

5.2 Emergency Family Leave

- Up to 3 days of paid leave per year for serious family emergencies
- Employees must notify HR and provide documentation of the emergency

6. Study Leave

6.1 Eligibility

- Available to permanent employees with minimum 12 months of service
- Leave must support career development relevant to current or potential future role at ABC SARL

6.2 Entitlement

- Up to 5 days per year for exam preparation and attendance
- Professional certification exams: Fully paid
- Personal development courses: 50% paid, 50% unpaid
- Employees must provide proof of examination schedule and results

6.3 Conditions

- Study leave agreement must be signed, stipulating that employees remain with the company for 12 months after completion
- If employee resigns within the specified period, cost of study leave may be recovered

7. Unpaid Leave

7.1 General Unpaid Leave

- Employees may request unpaid leave for personal reasons after exhausting paid leave entitlements

- Requests must be submitted at least 30 days in advance
- Approval is subject to operational requirements and at management's discretion
- Maximum unpaid leave: 30 days per calendar year

7.2 Sabbatical Leave

- Employees with 7+ years of continuous service may apply for sabbatical leave
- Duration: 1-3 months unpaid
- Applications must be submitted 6 months in advance
- Position is guaranteed upon return

8. Public Holidays

ABC SARL observes all official public holidays as declared by the government. When a public holiday falls on a weekend, the following Monday will be observed as a holiday.

9. Leave Administration

9.1 Record Keeping

- All leave is recorded in the HR management system
- Employees can view their leave balances at any time through the employee portal
- HR conducts quarterly leave balance reviews

9.2 Leave Abuse

- Fraudulent leave claims may result in disciplinary action up to and including termination
- Patterns of suspicious leave usage will be investigated
- Medical certificates will be verified when necessary

9.3 Leave During Notice Period

- Annual leave may be taken during the notice period with manager approval
- Unused leave will be paid out upon termination of employment
- Sick leave during notice period requires medical certification from the first day

10. Special Provisions

10.1 Religious Observance

- Employees may request up to 2 days per year for religious observance
- Requests should be submitted at least 2 weeks in advance
- May be taken as unpaid leave or from annual leave balance

10.2 Jury Duty and Legal Obligations

- Paid leave granted for jury duty or mandatory court appearances
- Official documentation required
- Employee must return to work if dismissed from jury duty

10.3 Military Service

- Unpaid leave granted for compulsory military service
- Position security as per applicable laws

ABC SARL - Code of Conduct and Ethics

Document Version: 3.0

Effective Date: January 1, 2025

Last Revised: October 15, 2024

1. Introduction

1.1 Purpose

This Code of Conduct and Ethics establishes the behavioral standards and ethical principles that guide all employees, contractors, and representatives of ABC SARL in their professional activities. Adherence to this code is mandatory and fundamental to maintaining our company's integrity, reputation, and legal compliance.

1.2 Scope

This code applies to:

- All employees regardless of position, location, or contract type
- Board members and executives
- Contractors, consultants, and temporary workers

- Business partners and vendors when representing ABC SARL

1.3 Responsibility

Every individual covered by this code is responsible for:

- Understanding and complying with all provisions
- Completing annual ethics training
- Reporting violations or suspected violations
- Cooperating with investigations

2. Professional Conduct

2.1 Respect and Dignity

- Treat all individuals with respect, dignity, and fairness
- Value diversity and promote an inclusive workplace
- Communicate professionally in all business interactions
- Respect cultural differences and perspectives

2.2 Workplace Behavior

- Maintain professional decorum at all times
- Dress appropriately according to company standards and role requirements
- Arrive punctually for work and meetings
- Use company time productively and efficiently
- Refrain from disruptive behavior

2.3 Harassment and Discrimination

ABC SARL maintains a zero-tolerance policy toward harassment and discrimination.

Prohibited Conduct:

- Sexual harassment of any form
- Discrimination based on race, color, religion, gender, age, national origin, disability, sexual orientation, gender identity, marital status, or any other protected characteristic
- Bullying, intimidation, or coercion

- Unwelcome physical contact or advances
- Offensive jokes, comments, or imagery
- Retaliation against individuals who report violations

Reporting: All incidents must be reported to HR immediately. Anonymous reporting is available through the Ethics Hotline.

3. Conflicts of Interest

3.1 Definition

A conflict of interest occurs when personal interests interfere or appear to interfere with the interests of ABC SARL.

3.2 Disclosure Requirements

Employees must disclose:

- Financial interests in competitors, suppliers, or customers
- Outside employment or business activities
- Family members employed by business partners
- Personal relationships with vendors or clients that could influence business decisions
- Gifts or hospitality exceeding company limits

3.3 Outside Employment

- Employees may engage in outside employment if it does not:
 - Conflict with ABC SARL business hours
 - Compete with ABC SARL services
 - Use ABC SARL resources, information, or relationships
 - Impair job performance
- Written approval from management required before accepting outside employment

3.4 Financial Interests

- Employees may not have significant financial interests in organizations that do business with or compete with ABC SARL
- "Significant" is defined as owning more than 5% equity or having decision-making authority

4. Confidentiality and Information Security

4.1 Confidential Information

Employees must protect:

- Trade secrets and proprietary information
- Client and customer data
- Financial information
- Strategic plans and business strategies
- Employee personal information
- Unreleased products or services

4.2 Data Protection

- Access confidential information only when necessary for job duties
- Use strong passwords and update them regularly
- Never share login credentials
- Lock computers when away from desk
- Encrypt sensitive data in transit and at rest
- Report suspected data breaches immediately to IT Security

4.3 Social Media and External Communications

- Do not disclose confidential company information on social media
- Personal social media accounts must not suggest official company endorsement
- Do not speak to media on behalf of ABC SARL without authorization
- Respect copyright and intellectual property in all communications

4.4 Post-Employment Obligations

Confidentiality obligations continue after employment ends. Former employees may not:

- Use or disclose ABC SARL confidential information
- Solicit ABC SARL clients for competitive purposes (during restriction period)
- Solicit ABC SARL employees for employment elsewhere (during restriction period)

5. Company Assets and Resources

5.1 Use of Company Property

- Company assets must be used primarily for business purposes
- Limited personal use of computers and phones is permitted if it does not interfere with work
- Company vehicles must be operated safely and legally
- Report lost, stolen, or damaged company property immediately

5.2 Intellectual Property

- All work product created during employment belongs to ABC SARL
- Inventions, designs, software, and creative works developed using company resources are company property
- Employees must sign intellectual property assignment agreements
- Do not use unlicensed software or pirated materials

5.3 Financial Resources

- Expense claims must be accurate, documented, and reasonable
- Submit expense reports within 14 days of incurrence
- Never use company funds for personal benefit
- Comply with all financial policies and approval procedures

5.4 Technology Resources

- Use company email and internet access responsibly
- Do not access inappropriate content
- Do not download unauthorized software
- Do not use company systems for illegal activities
- Monitoring of company systems may occur to ensure compliance

6. Business Integrity

6.1 Anti-Bribery and Corruption

ABC SARL strictly prohibits bribery and corruption in all forms.

Prohibited Activities:

- Offering, giving, requesting, or receiving bribes or kickbacks
- Facilitating payments to government officials
- Providing improper advantages to win business
- Money laundering
- Fraud or embezzlement

6.2 Gifts and Hospitality**Receiving Gifts:**

- Gifts under \$50 value: Acceptable
- Gifts between \$50-\$150: Requires disclosure to supervisor
- Gifts over \$150: Must be declined or donated to charity
- Cash or cash equivalents: Never acceptable

Providing Gifts:

- Must be reasonable, infrequent, and transparent
- Must not create obligation or appearance of impropriety
- Must comply with recipient's organization policies
- Requires approval for amounts over \$100

6.3 Fair Competition

- Compete fairly and ethically
- Do not make false or misleading statements about competitors
- Do not collude with competitors on pricing or market allocation
- Respect intellectual property rights of others
- Obtain competitive information through proper means only

6.4 Accurate Records

- Maintain accurate and complete business records
- Never falsify documents, reports, or time records

- Ensure financial records comply with accounting standards
- Cooperate fully with internal and external audits
- Retention periods must be observed for all business records

7. Client and Customer Relations

7.1 Quality and Service

- Deliver services that meet or exceed commitments
- Be honest about capabilities and timelines
- Address customer concerns promptly and professionally
- Never make promises that cannot be kept

7.2 Honest Marketing

- Marketing materials must be truthful and not misleading
- Do not make exaggerated claims about products or services
- Respect truth-in-advertising principles
- Obtain necessary permissions for testimonials and endorsements

7.3 Privacy

- Protect customer personal information
- Collect only necessary data
- Use customer information only for stated purposes
- Comply with applicable privacy laws and regulations
- Obtain consent for data processing when required

8. Health, Safety, and Environment

8.1 Workplace Safety

- Follow all safety procedures and protocols
- Use personal protective equipment where required
- Report unsafe conditions immediately
- Do not operate equipment without proper training

- Never come to work impaired by alcohol or drugs

8.2 Substance Abuse

- ABC SARL maintains a drug-free workplace
- Possession, use, or distribution of illegal drugs on company premises is prohibited
- Alcohol consumption is permitted only at approved company events
- Employees must not work while impaired

8.3 Environmental Responsibility

- Comply with environmental laws and regulations
- Minimize waste and promote recycling
- Use resources efficiently
- Report environmental concerns or violations
- Support company sustainability initiatives

8.4 Emergency Procedures

- Know emergency exits and assembly points
- Participate in emergency drills
- Report security concerns
- Follow crisis management protocols

9. Compliance and Legal Obligations

9.1 Legal Compliance

- Comply with all applicable laws, regulations, and industry standards
- Never engage in illegal activities
- Seek guidance when legal requirements are unclear
- Report legal or regulatory violations

9.2 Anti-Money Laundering

- Know your customer and verify identities
- Report suspicious transactions

- Maintain proper documentation
- Comply with sanctions and embargo restrictions

9.3 Export Controls

- Comply with export control regulations
- Obtain necessary licenses for technology transfer
- Screen customers against restricted party lists
- Report potential violations to Legal Department

9.4 Political Activities

- Political contributions or activities on behalf of ABC SARL require prior approval
- Personal political activities must not create impression of company endorsement
- Do not use company resources for political purposes

10. Reporting and Accountability

10.1 Reporting Violations

Employees who become aware of violations must report them through:

- Direct supervisor or manager
- Human Resources Department
- Legal Department
- Ethics Hotline: 1-800-XXX-XXXX (available 24/7, anonymous)
- Ethics email: ethics@abcsarl.com

10.2 Non-Retaliation

- ABC SARL prohibits retaliation against anyone who reports concerns in good faith
- Retaliation includes termination, demotion, harassment, or other adverse action
- Those who retaliate will face disciplinary action

10.3 Investigation Process

- All reports will be taken seriously and investigated promptly
- Investigations will be conducted confidentially to the extent possible

- Employees must cooperate fully with investigations
- Findings will be documented and appropriate action taken

10.4 Disciplinary Action

Violations may result in:

- Verbal or written warning
- Mandatory training
- Suspension
- Termination of employment
- Legal action
- Reporting to authorities

Severity of discipline depends on:

- Nature and severity of violation
- Whether violation was intentional
- Prior conduct record
- Level of cooperation during investigation

11. Training and Acknowledgment

11.1 Training Requirements

- All employees must complete Code of Conduct training within 30 days of hire
- Annual refresher training is mandatory
- Role-specific ethics training may be required
- Training completion is tracked and reported

11.2 Acknowledgment

- All employees must sign an acknowledgment form confirming they have read, understood, and agree to comply with this Code
- Acknowledgment must be renewed annually
- Failure to acknowledge may result in disciplinary action

11.3 Questions and Guidance

For questions or guidance on ethical matters, contact:

- Your direct supervisor
- Human Resources: hr@abcsarl.com
- Legal Department: legal@abcsarl.com
- Ethics Hotline: 1-800-XXX-XXXX

12. Amendments and Enforcement

ABC SARL reserves the right to amend this Code of Conduct and Ethics at any time. Employees will be notified of material changes and may be required to complete additional training.

This code is enforced uniformly across all levels of the organization. No one is exempt from these standards, including senior executives and board members.

Employee Acknowledgment

I acknowledge that I have received, read, and understood the ABC SARL Leave Policy and Code of Conduct and Ethics. I agree to comply with all policies and procedures outlined in these documents. I understand that violations may result in disciplinary action up to and including termination of employment.

I understand that these policies do not constitute a contract of employment and that ABC SARL reserves the right to modify these policies at any time.

Employee Signature: _____

Employee Name (Print): _____

Date: _____

Employee ID: _____